

statement does not comply with that requirement. To the extent the embedded objections overlap with objections properly filed as separate documents and are material to the disposition of the motion, they are addressed below. To the extent they do not overlap and/or are not material, the Court declines to rule on them.

Defendant's Objection No.3 to the Blackburn Declaration: **OVERRULED**. The challenged testimony describes the physical components of the storm sewer system based on the declarant's personal inspection of the site. This is properly within the expertise of a licensed geotechnical engineer and does not constitute improper contract construction. (Evid. Code, § 720.)

Defendant's Objection No. 4 to the Blackburn Declaration: **OVERRULED**. The Court does not rely on the speculative portion of the challenged testimony regarding the Central Contra Costa Sanitary District. The remainder of the paragraph – that the absence of a defined channel in the flat area caused stormwater to spread, saturate the slope, and trigger the landslide – is a geotechnical causation opinion within the declarant's expertise and is not speculative. (Evid. Code, §§ 720, 803.)

All remaining objections are not material to the Court's disposition and are not ruled upon.

VII. Conclusion

For the foregoing reasons, Defendant's motion for summary judgment or, in the alternative summary adjudication, is **DENIED**.

5. 9:00 AM CASE NUMBER: C23-02578
CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE
HEARING ON SUMMARY MOTION
FILED BY: HAMMOND, DAVID
TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on June 10, 2026. No further briefing will be required. No appearance is required on May 20, 2026.

6. 9:00 AM CASE NUMBER: C23-03200
CASE NAME: BRANDI SANFORD VS. PACIFIC STATES PETROLEUM, INC.
*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION
FILED BY: SANFORD, BRANDI
TENTATIVE RULING:

Summary

Plaintiff Brandi Sanford moves for preliminary approval of the proposed class action settlement with defendant ARB, Inc. The motion is **granted** as set forth below. No appearance is required at the hearing on May 20, 2026.

Background and Settlement Terms

The original complaint was filed on December 18, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code by failing to pay minimum wages, failure to provide meal periods, failure to authorize rest periods, among others. On December 21,

2023, Plaintiff sent a notice to Defendant and the California Labor & Workforce Development Agency (“LWDA”) alleging similar wage and hour violations pursuant to PAGA. The Parties filed a stipulation for Plaintiff to be granted leave to amend to file a First Amended Class & Representative Action Complaint adding a claim for civil penalties under the PAGA on November 14, 2025.

The settlement would create a gross settlement fund of \$275,000. The class representative payment to the plaintiff would be \$10,000. Attorney’s fees would be \$91,666.66 (one-third of the settlement). Litigation costs are estimated not to exceed \$20,000. The PAGA allocation is \$10,000, with \$7,500 being paid to the LWDA and \$2,500 being paid to the aggrieved employees. The settlement administrator’s, Apex Class Action LLC, costs will not exceed \$10,000. The fund is non-reversionary. Based on the class size, the average payment to each class member would be about \$440.47.

The entire settlement amount will be deposited with the settlement administrator. The proposed settlement would certify a class of all current and former hourly employees who worked on for Defendant between December 18, 2019 through August 17, 2024. The class has about 300 members.

The settlement contains release language covering “all claims arising during the Class Period under state, federal, or local law, arising out of the claims pleaded in the Complaint on file in the action[...] claims based on alleged violations of these Labor Code and Wage Order provisions) and all other claims, such as those under the California Labor Code, Wage Orders, regulations, and/or other provisions of law, that could have been pleaded based on the facts asserted in the Action, including, but not limited to: (1) failure to timely pay employees upon separation or discharge; (2) failure to pay all wages due and owing for time worked; (3) all related violations of the applicable Wage Orders; (4) all related violations of California’s unfair competition law; and (5) interest, fees, and costs[...].” Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.” “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.”] *Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.) Thus, it is important that the “Released Claims” includes only claims that could have been pleaded “based on the facts asserted in the Action.”

Informal discovery was undertaken. The Parties exchanged information before mediating this matter with Hon. Amy Hogue (Ret.). The matter was settled after a mediation sessions with a mediator. Further details of the settlement agreement are included in the exhibits provided to the Court, which were reviewed by the Court..

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$10,000 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The Motion is **granted**.
2. The Court finds that settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval.
3. Counsel are directed to prepare a proposed order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date.
4. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
5. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney’s fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
6. No appearance is required on May 20, 2026.